Working of Institutions

The big idea

In a democracy, decisions are not taken by one person. They pass through **institutions**: the **legislature** (Parliament) makes laws, the **executive** (President, Prime Minister, ministers, civil servants) implements them, and the **judiciary** settles disputes. This chapter follows how a major decision is taken and how these institutions work and check each other.

How is a major policy decision taken?

Example: the Mandal Commission and Office Memorandum of 1990. The Government of India set up the **Second Backward Classes Commission** in **1979**, headed by **B.P. Mandal** (hence the **Mandal Commission**). It submitted its report in **1980**, recommending **27% reservation** in government jobs for the **socially and educationally backward classes (SEBC)**. In **1990**, the **Janata Dal** government under Prime Minister **V.P. Singh** decided to implement it. On **13 August 1990**, an **Office Memorandum (O.M.)** was issued, signed by a Joint Secretary of the Department of Personnel and Training.

The decision followed: President's address to Parliament (announcing intention), Union Cabinet's formal decision (6 August 1990), PM's statement in Parliament, then the O.M. There were protests and counter-protests; cases were filed in courts. In the **Indira Sawhney and others vs Union of India** case (**1992**), the **Supreme Court** upheld the order but asked the government to modify it so that well-to-do persons among the backward classes (the "**creamy layer**") were excluded from the benefit.

Parliament

Parliament is the national assembly of elected representatives. In India it consists of the **President** and two Houses: the **Lok Sabha** (House of the People) and the **Rajya Sabha** (Council of States).

Why do we need Parliament?

1. It is the **final authority for making laws**.
2. It exercises **control over those who run the government**; in India the government can stay in office only as long as it enjoys the support of the Lok Sabha.
3. It **controls all the money** the government has: public money can be spent only when Parliament sanctions it.
4. It is the **highest forum of discussion and debate** on public issues and national policy.

Lok Sabha vs Rajya Sabha

Lok Sabha	Rajya Sabha
Directly elected by the people	Elected indirectly by the elected members of State Legislative Assemblies (and some nominated)
Usually called the **lower house**, but it is more powerful	Called the **upper house**
543 elected members	Up to 250 members (12 nominated by the President)
Term of **5 years** (can be dissolved earlier)	**Permanent house**; one-third members retire every 2 years; members have 6-year terms
Money bills can be introduced only here; Rajya Sabha can delay a money bill only by **14 days**	Can only suggest changes in money bills

Lok Sabha	Rajya Sabha
Controls the Council of Ministers; can pass a **no-confidence motion** to remove the government	Cannot remove the government
In a joint sitting on an ordinary bill, it usually prevails because of larger numbers	Has special powers over state matters

"UPPER HOUSE" IS NOT THE MORE POWERFUL ONE

The Rajya Sabha is called the upper house, but the **Lok Sabha** exercises more real power: money bills, control over the Council of Ministers, and larger numbers in joint sittings.

Political executive

The **executive** is the body of persons having authority to execute policies. It has two parts:

- **Political executive**: elected by the people for a specific period (e.g. ministers). They take the big decisions; they are answerable to the people.
- **Permanent executive (civil services)**: appointed on a long-term basis; they remain in office even when the ruling party changes. They are more educated and have expertise but work under the political executive.

Prime Minister: The President appoints the leader of the majority party or coalition that commands a majority in the Lok Sabha as PM. The PM has no fixed tenure; he or she continues as long as they remain leader of the majority. The PM chairs Cabinet meetings, coordinates departments, distributes and redistributes work to ministers, and can dismiss ministers. When the PM quits, the entire ministry quits.

Council of Ministers (60 to 80 ministers of different ranks):

- **Cabinet Ministers**: top-level leaders in charge of major ministries; the **Cabinet** (about 25 ministers) is the inner ring of the Council of Ministers.
- **Ministers of State with independent charge**: in charge of smaller ministries; attend Cabinet meetings only when invited.
- **Ministers of State**: attached to and assist Cabinet Ministers.
  The Cabinet works as a team; ministers may have different views but every decision is owned by all (**collective responsibility**). In coalition governments, the PM cannot take decisions as freely and must accommodate partners.

The President: the **head of the State**, with only nominal powers, like the Queen/King of Britain. Elected indirectly by an electoral college of **elected MPs and elected MLAs**. All government activities take place in the President's name; all laws and major policy decisions are issued in his or her name; the President appoints the CJI, judges, governors, election commissioners and ambassadors; is the supreme commander of the defence forces. But the President exercises these powers on the **advice of the Council of Ministers**. The President can ask the Council to reconsider advice once, but must sign if it is sent back. A bill passed by Parliament becomes law only after the President's assent; the President can delay it and send it back once. The most important discretion: appointing the PM when no party has a clear majority.

PARLIAMENTARY VS PRESIDENTIAL SYSTEM

India has a **parliamentary system**: the executive is drawn from and answerable to the legislature, and the PM is the real head. In a **presidential system** (like the USA), the President is both head of state and head of government and is directly elected.

The Judiciary

India has an **integrated judiciary**: the **Supreme Court** at the top controls judicial administration in the country; its decisions are binding on all other courts. Below it are **High Courts** in states, then **District Courts** and courts at local level.

The Supreme Court can take up disputes:

- between citizens of the country;
- between citizens and the government;
- between two or more state governments;
- between governments at the Union and state level.
  It is the **highest court of appeal** in civil and criminal cases.

Independence of the judiciary: it is not under the control of the legislature or the executive. Judges are appointed by the President on the advice of the PM and in consultation with the Chief Justice; in practice senior judges select new judges. Judges can be removed only by an **impeachment** motion passed separately by **two-thirds** of members present in **both Houses** of Parliament; this has never happened to a Supreme Court judge.

Powers: the Supreme Court and High Courts are the guardians of the Constitution and Fundamental Rights. **Judicial review**: they can declare invalid any law of the legislature or action of the executive that is against the Constitution. They can also stop amendments that change the **basic structure** of the Constitution. **Public Interest Litigation (PIL)**: anyone can approach the courts if public interest is hurt by government actions.

BOARD FAVOURITE

"Why is the Lok Sabha more powerful than the Rajya Sabha?", "Describe the powers of the Prime Minister" and "How is the independence of the judiciary ensured?" are standard questions. The Mandal Commission is also a common case-study question.

Quick recap

- Mandal Commission (1979; report 1980) recommended 27% reservation for SEBC; O.M. of 13 August 1990; Indira Sawhney case (1992) excluded the creamy layer.

- Parliament = President + Lok Sabha + Rajya Sabha; Lok Sabha is more powerful.
- Political executive (elected) vs permanent executive (civil servants).
- PM is the real head; President is the nominal head, acting on advice.
- Integrated, independent judiciary; judicial review and PIL protect rights.

Practice questions

1. The Mandal Commission was headed by
   (a) V.P. Singh (b) B.P. Mandal (c) Indira Sawhney (d) Morarji Desai
2. What percentage of government jobs did the Mandal Commission recommend reserving for SEBC?
   (a) 15% (b) 50% (c) 27% (d) 33%
3. Money bills can be introduced only in
   (a) the Lok Sabha (b) the Rajya Sabha (c) either House (d) a joint sitting
4. The President of India is elected by
   (a) all citizens above 18 (b) members of the Lok Sabha only (c) elected MPs and elected MLAs (d) the Council of Ministers
5. Which body can be dissolved and has a term of five years?
   (a) Rajya Sabha (b) Supreme Court (c) Election Commission (d) Lok Sabha
6. A judge of the Supreme Court can be removed by
   (a) the Prime Minister's order (b) a simple majority in the Lok Sabha (c) an impeachment motion passed separately by two-thirds of members present in both Houses (d) the Chief Justice of India
7. The permanent executive refers to
   (a) ministers of the Cabinet (b) members of Parliament (c) civil servants (d) the President and the Vice-President
8. How is the Lok Sabha more powerful than the Rajya Sabha?
9. Distinguish between the political executive and the permanent executive.

Answers: 1. b 2. c 3. a 4. c 5. d 6. c 7. c 8. see notes 9. see notes